

The Claremont City Council held a meeting on Wednesday, January 25, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne - Absent
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski - Absent
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the January 11, 2022, City Council meeting.

Voice vote:

Batchelder - yes

Stone - yes

Matteau - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

MAYOR'S NOTES

Mayor Girard noted Mr. Dole's Proclamation will be postponed until the next meeting due to weather.

Mayor Girard added Arrowhead is opening this Saturday, and Sullivan County has a led hazard control and help homes program ongoing.

CITY MANAGER'S REPORT

City Manager Manale, reported the response from the State relative to the Voter Initiative Binding Process Charter Amendment proposal, the State rejected the proposal.

Manager Manale reminded restaurant owners within the City the State has extended its Local Restaurant Investment Program.

CITIZEN'S FORUM

Mayor Girard reminded all that speak have 5 minutes on non-agenda items.

Mike Tetu, Ward 2, shared concern for Arrowhead's Master Plan, and intends to be back at the next meeting with a group to create Master Plan. Mayor Girard suggested to reach out to Arrowhead and the Parks and Recreation Board to start the process. Mr. Tetu also shared concern for lack of public participation in the Parks and Recreation Board strategic plans.

Chuck Allen, Ward 3, shared his disagreement with the proposed lease agreement for the Wheelhouse.

Michael Huges, Ward 2, Shared his concern for the appointed Police Commissioner, Mr. Huges noted he wants to initiate an adult and youth program for the Police Department. Mr. Huges also noted when the Chief of Police is representing anything at Council meetings the commissioners should be in attendance with the Chief. Then thanked the Mayor for his ambulance service and shared a story about a young child's life who was saved.

Director Richmond, introduced Thomas Grantham, the new City Treasurer to the City Council. Mr. Grantham explained his eagerness to transition into this role.

OLD BUSINESS

Ordinance 605 – Parking – Second Reading – Public Hearing

ORDINANCE #605

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Off-Street Parking for Residential Uses; Shared Parking for Other Uses.

Revise and renumber Chapter 22, Zoning Ordinance, to increase flexibility for parking arrangements in the City Center districts by requiring off-street parking only for residential uses and to allow shared parking arrangements with other properties subject to planning board or zoning board of adjustment approval, as follows:

Sec. 22-1. Definitions.

Parking, off-street, shall consist of space for parking motor vehicles including space for turning movements, maneuvering, and access to the street located entirely on the lot of the use which it serves or with the approval of the planning board on nearby property owned or leased by the use, or with the approval of the planning board or zoning board of adjustment on other property through a shared parking arrangement.

Sec. 22-533. Table.

Except as otherwise provided in this chapter, off-street parking spaces shall be provided in accordance with the following:

Use	Off-Street Parking Spaces Required
(1) Single-family dwelling	Two (2)
(2) Multifamily	One and one-half (1½) spaces per dwelling unit
(3) Rooming houses	One (1) per rental unit
(4) Motels and hotels	0.85 spaces per rental unit
(5) Nursing homes, convalescent homes	One (1) per four (4) beds (minimum of five (5) spaces)

Use	Off-Street Parking Spaces Required
(6) Places of worship	One (1) per four (4) seats
(7) Hospitals	One (1) per two (2) beds
(8) Places of public assembly	One (1) per four (4) seats or per twenty (20) square feet where no permanent seats
(9) Restaurants	One (1) per four (4) seats (minimum of five (5) spaces)
(10) Retail stores and services	One (1) per four hundred (400) square feet of gross floor area
(11) General offices	One (1) per three hundred twenty-five (325) square feet of gross floor area
(12) Medical or dental offices	One (1) per three hundred twenty-five (325) square feet of gross floor area
(13) Warehouses and similar uses	One (1) per one thousand two hundred (1,200) square feet of gross floor area
(14) Industrial uses	One and one-half (1½) per employee based on maximum employee occupancy that drive to work (minimum of five (5) spaces)
(15) Mixed uses	Sum of component uses
(16) Home occupations	Parking shall be provided for all occupations involving clientele or requiring deliveries, number of spaces shall be determined by the zoning board of adjustment
(17) Other uses	Parking requirements for uses not covered shall be determined by the planning board as part of site plan approval

Shared parking under Sec 22-540 may combine parking for any permitted use(s), including residential uses.

Insert new sections after 22-538:

Sec 22-539. Parking in the city center residential I and II districts.

In the city center residential I and II districts, off-street parking shall only be required for residential uses as provided for in Sec 22-533; however, shared parking under Sec 22-540 may be proposed for residential and non-residential uses.

Sec. 22-540. Shared parking arrangements in city center districts.

- (a) Notwithstanding any provision of this chapter which may conflict with the following provisions, within the city center residential I and II districts, professional residential district, city center business II district and the mixed-use district, applicants are encouraged to consider and propose shared parking arrangements to meet the minimum required number of off-street parking spaces for the proposed use. Shared parking may be proposed for any use permitted in such districts, including residential.
- (b) The purpose of shared parking arrangements is to reduce the total number of parking spaces required in the city center area to accommodate expected needs when land uses on different lots have different and complementary parking demand patterns and are able to use the same parking areas/spaces over time. Shared parking is most effective when these land uses have significantly different peak parking characteristics that vary by time of day, day of week, and/or season of the year, such as office, restaurant, retail, church, banking, or event spaces.
- (c) Proposals, including a site plan of all parking spaces/areas intended for shared parking and proximity to the uses/properties they will serve, will be evaluated based on expected parking needs for each use as otherwise established in this section 22 and any applicable city regulations, operating hours, seasonal/daily peaks in parking demands, the property's orientation, location of access driveways, public transportation service, accessibility to other nearby parking areas, pedestrian connections, distance to parking area, availability of parking spaces, and cooperation of adjacent owners.
- (d) Shared parking shall be located no more than 1200 linear feet from the proposed use(s) they will serve.
- (e) Approval of shared parking must be contingent upon the owners of all affected property/uses including the applicant entering an enforceable agreement guaranteeing access to, use of, management and maintenance (including without limitation snow and ice removal) of shared parking areas.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to suspend Council Rules and read the explanation of proposed action into record.

Roll Call:

Batchelder - yes

Stone - yes

Matteau - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to pass Ordinance 605.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Batchelder - yes

Stone - yes

Matteau - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

NEW BUSINESS

Tree Policy

City Planner Bearse, explained the last time this topic was brought to Council was in July of 2021. Planner Bearse noted this was accepted and reviewed by the Directors of Department of Public Works, Planning and Development and previous Director of Parks and Recreation.

CITY OF CLAREMONT MUNICIPAL TREE POLICY

Pursuant to this policy as established by the City Council of the City of Claremont, New Hampshire:

Section 1. Findings

The City of Claremont recognizes:

1. the importance of trees to our community and to our environment;
2. that healthy trees reduce air and noise pollution, provide energy-saving shade and cooling, and contribute to the beauty and attractiveness of Claremont;
3. that our community's trees present a positive image and contribute to Claremont's quality of life;
4. that trees provide habitat for nesting birds, a variety of mammals, insects and other wildlife;
5. that good tree management strives to keep public areas safe and clear of obstructions while maintaining healthy, vigorous and attractive trees;
6. its commitment to the preservation of its trees to the extent possible.

The City of Claremont further recognizes that:

1. it has a statutory obligation to maintain its streets and highways;
2. as part of this obligation, the public right-of-way must be kept clear of obstructions, not only in the interests of safe passage for the traveling public, but also for the operation of below-ground public utilities such as water, sewer, and storm water systems.

Section 2. Purpose.

The purpose of this policy is to:

1. Identify roles and responsibilities;
2. Protect the City from liability;
3. Define local language as it pertains to trees;
4. Establish and prioritize procedures for tree plantings, removals, and protection;
5. Establish procedures for the prevention and control of damage from forest pests; and
6. Demonstrate the City's commitment to its trees and forests;

7. Outline the procedure and practices to be used in the routine protection, maintenance, management, control, and removal, as may be necessary, of vegetation, including trees, in, on, below and over the City's:
 1. public streets and sidewalks;
 2. cemeteries; and
 3. parks and recreation areas.

This policy is not applicable to removal of vegetation as a result of, or associated with, emergencies resulting from such events as snow or ice storms, wind, lightning, floods, or other such natural occurrences.

Section 3. Authority and power.

(a) *Delegation of authority and responsibility.* Full authority and responsibility for implementation of this policy shall be delegated as follows:

1. City Center trees shall be overseen by the Director of the Planning and Development Department;
2. Trees in or upon municipal streets and rights-of-ways outside of the City Center, and trees in public cemeteries shall be overseen by the Director of the Public Works Department;
3. Trees in City parks and within the Rail Trail right-of-way shall be overseen by the Director of the Parks and Recreation Department;
4. Trees in the City's designated forests shall be the combined responsibility of the Directors of the Public Works, Planning and Development, and Parks and Recreation Departments with guidance from the Forest Management Plan.

(b) *Appropriate Remedial Action.* This authority shall include taking the appropriate remedial action toward trees that:

- Have been declared a nuisance or hazard;
- Threaten any:
 - electrical or telephone lines;
 - municipal water or sewer line;
 - municipal sidewalk;
- Pose an imminent threat to headstones in a public cemetery;
- Are affected by fungus, insects, or other pest disease.

"Appropriate remedial action" may include the removal of a tree or trees. It also includes the removal of invasive trees within the authority's jurisdiction.

(c) *Interference.* No person shall hinder, prevent, delay, or interfere with the Directors or their agents while engaged in carrying out the execution or enforcement of this Policy.

Section 4. Definitions.

As used in this Article, the following words and phrases shall have the meanings indicated:

Damage – any injury to or destruction of a tree, including but not limited to: uprooting; severance of all or part the root system or main trunk; storage of material on or compaction of surrounding soil; a substantial change in the natural grade above a root system or around a trunk;

surrounding the tree with impervious paving materials; or any trauma caused by accident or collision.

Hazard – any tree, or limb thereof, that is:

- Seriously affected by fungus, insects or other pest disease,
- dead or dying AND
- is endangering property OR
- threatens public health, safety and welfare.

Nuisance – any tree, or limb thereof, that:

- obstructs
 - the view of traffic signs OR
 - the free passage of pedestrians or vehicles;
- extends into a City-owned right-of-way at a height of less than 14 feet. (Provisions of RSA 236:39 may also apply.)

Parkway – the area along a public street between the curb and the sidewalk; or if there is no curb or sidewalk, the unpaved portion of the area between the street right-of-way line and the paved portion of the street or alley.

Public property – all grounds and rights-of-way (ROWs) owned or maintained by the City.

Public tree – any tree or woody vegetation on city-owned or city-maintained property. Trees within a publicly-owned right-of-way belong to the underlying property owner and are not considered public trees within the context of this policy.

Right-of-way – The right-of-way typically encompasses both the paved/graveled areas for use of vehicles plus strips of land along each side where shoulders, curbs, sidewalks or drainage swales exist. These strips of land which abut the traveled portion of the road may appear to be private property, but in fact are regulated by the City in the interests of public health and safety.

Significant tree(s) – any tree or stand of trees on lands owned by the city, or any land upon which easements are imposed for the benefit of the city, with historic or cultural value, or which by reason of its age, rarity, location, size, aesthetic quality or native status that has been designated by the conservation commission as worthy of preservation. The Conservation Commission is responsible for maintaining the inventory of all significant trees.

Top or Topping – the non-standard practice of cutting back of limbs to stubs within a tree's crown to such a degree as to remove the normal canopy and disfigure the tree.

Section 5. Declaration of Hazard or Nuisance.

(a) Nuisance limbs can be removed at the sole discretion of any Director.

(b) Nuisance trees with a trunk diameter of 16 inches or greater at a point 4 feet above the ground cannot be removed in their entirety without prior consultation with a certified arborist.

- a. The consulting arborist shall not be the same party that would be engaged to remove the tree, if removal is ultimately required.
- b. Abutting property owners shall be notified prior to the tree's removal except when the delay entailed by such notice would pose an imminent threat to public safety (see 5d)

- c. Notice will be sent by certified mail to the abutting landowner(s), who has/have 30 days to appeal the matter if they disagree with the proposed removal and who has/have the option of hiring a tree warden to prove otherwise.
 - d. The Conservation Commission shall also be notified.
- (c) Nuisance trees with a trunk diameter of less than 16 inches at a point 4 feet above the ground do not require prior consultation with an arborist prior to their removal.
 - a. Removal of these trees does not require advanced notice to abutters, but the City must receive written permission from abutter(s) who may have planted any protective shrubbery, shade or fruit trees before removing them, unless dead, damaged beyond recovery, diseased, or considered a public safety hazard (see 5d).
- (d) Hazard limbs and trees may be removed in an emergency at the sole discretion of the Director. Emergency is taken to mean snow or ice storms, wind, lightning or other such natural occurrences, or isolated incidents such as vehicle impact to a tree.
- (e) Private property owners have the duty, at their own expense, to remove nuisance trees or to treat hazard trees on their property. The City may remove such trees at the owner's expense if the owner does not comply with treatment and/or removal as specified by the Director within the written notification period.

Section 6. Significant Trees

Notwithstanding any provisions of this Claremont Municipal Tree Policy, any tree of stand or trees designated significant shall not be removed or altered without prior consultation and advice of a certified arborist.

Section 7. Adjacent owner rights and responsibilities.

- (a) No property owner shall allow a tree, or other plant growing on his or her property or within the adjacent parkway to obstruct or interfere with pedestrians or the view of drivers, thereby creating a hazard. If an obstruction persists, the Director shall notify the property owner to prune or remove the tree or plant. If the owner fails to comply with the notice, the City may undertake the necessary work and charge the cost to the property owner.
- (b) Landowners have a legal duty to maintain trees and bushes on their property so that they do not pose an unreasonable risk of harm to others. However, the City also has a duty to maintain its streets and sidewalks in as safe a manner as possible. The City may not remove trees and bushes located on private property outside of the right-of-way unless they pose a safety hazard to the public or impede the ability to maintain the right-of-way; however, the City may cut any limbs in the air or roots on or under the ground that intrude into the right-of-way, even if the trunk of the tree is outside the right-of-way if such growth creates a public nuisance by way or damage to City improvements on or under the right-of-way or creates a safety hazard.
- (c) If a tree located on private property abutting the public right-of-way is determined to be a hazard to the public, the City may contact the property owner to discuss resolution of the issue.
- (d) The owner of abutting property will be given the "right of first refusal" for the wood from such cutting on or abutting the property.
- (e) If a tree is located in the right-of-way, but is not a public nuisance or a safety hazard, then the municipality is under no obligation to remove it, even if the abutter requests removal.

However, should an abutter determine that a tree located in the right-of-way is a safety hazard to the abutter's property, the abutter may be permitted to remove such tree at the abutter's sole cost with the advance written permission of Public Works and a release of all City liability for the removal.

(f) If a tree straddles the boundary between the right-of-way and private property, the City and the property owner may negotiate a division of the cost of removal, but in no circumstances shall the City be obligated to pay more than one-half of the removal cost.

Section 8. Prohibition against harming public trees.

(a) It shall be unlawful for any person, firm or corporation to damage, remove, or cause the damage or removal of a tree on public property without written permission from the Director.

(b) It shall be unlawful for any person, firm or corporation to attach any cable, wire or signs or any other object to any tree on public property.

(c) It shall be unlawful for any person, firm or corporation to "top" any public tree. Trees severely damaged by storms or other causes, where best pruning practices are impractical may be exempted from this provision at the determination of the Director.

(d) Upon finding that an unauthorized individual or entity has "recklessly cut, fell[ed], destroy[ed], injure[d], carr[ied] away, or caused to be cut, felled, destroyed, injured or carried away any" public tree of the City of Claremont, the City Director (who is charged, by this policy, with monitoring and maintaining such public tree) shall notify the Claremont Police Department of this potential criminal activity. *See N.H. Rev. Stat. Ann. §227-J:8-a.* Furthermore, this Director shall notify the City Manager of this event and may request that the City Manager consult with legal counsel concerning the possibility of pursuing civil penalties associated with such action pursuant to RSA 227-J:8 (or its legal equivalent if there is a change in the statutory scheme).

Section 9.

The City of Claremont will maintain the trees in the right-of-way to the best of its ability, manpower, and budget considerations permitting; but it cannot be responsible for the consequences of "Acts of God", or emergencies, unpredictable hazards, and/or extreme weather events. The City maintains 288± lane miles of public roads, most of which have trees along them. Communication and cooperation between the City and Claremont's landowners are essential for preserving and maintaining roadside trees and other vegetation, which provide us with a protective canopy that helps make Claremont a safe, healthy, and attractive place to live.

A motion was made by Councilor Stone and seconded by Councilor Limoges to bring the Tree Policy back to the Policy Committee.

Roll call:

Batchelder - yes

Stone - yes

Matteau - yes

Limoges - yes

Contois - no

Mooshian - yes

Girard - yes

Motion carried 6-1

CDA Bylaws Discussion

Councilor Stone suggested having a voting member of the City Council serve on the CDA, Councilor Stone also shared concern for the application process, and wants to see all applications be filtered through the council.

City Planner Bearse, explained the process of appointing CDA members, they are nominated by the sitting members of the CDA and then goes to the City Manager, then the City Manager makes the recommendation before going to Council. Planner Bearse noted the vacant seats are advertised like all other vacant boards and committees, three months in advance of expiration.

Assistant Mayor Matteau asked if there has been multiple applicants for one seat, City Planner Bearse clarified this does not happen.

Councilor Limoges suggested advertising on What's up Claremont Facebook page.

Councilor Contois asked if the City was violating any RSA's with its current process, Ms. Bearse explained the City is not in violation.

A motion was made by Councilor Limoges and seconded by Councilor Stone for the next available vacancy of the CDA, a Council Member should be appointed.

City Planner Bearse suggested the Council create an ex officio seat specifically for a Council member instead of a regular member possibly giving up their seat.

Mayor Girard shared concern for not following bylaws.

Roll call:

Batchelder - no

Stone - yes

Matteau - no

Limoges - yes

Contois - no

Mooshian - no

Girard - no

Motion carried 5-2

Resolution 2023-22 First Night Button Proceeds

RESOLUTION 2023-22

Proceeds from First Night Button Sales

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS on December 31, 2022, the Claremont Parks & Recreation Department (the "Department"), in conjunction with the Claremont-Sugar River Rotary Club (the "Rotary Club"), co-sponsored First Night activities (the "Event") as a community celebration of the New Year; and

WHEREAS the Department collected \$285.00 from sale of First Night buttons, which was part of the Rotary Club's fundraising activities; and

WHEREAS the Department would like to now distribute these funds to the Rotary Club;

NOW THEREFORE, BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to withdraw the total amount of \$285.00 from the Parks & Recreation Revenue Account and to distribute the sum of \$285.00 to the Rotary Club; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 25th day of January 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batcheler and seconded by Assistant Mayor Matteau to accept Resolution 2023-22

Councilor Batchelder read Resolution 2023-22 into the Record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
Batchelder - yes
Stone - yes
Matteau - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 7-0

Housing and Resources Discussion

Welfare Director, Sue Carr gave a brief update on homelessness in Claremont. Director Carr stated the focus is to try to offer help before people become homeless and keep them in their homes. In FY2022, 231 calls about homeless individuals, 223 calls about evictions. For FY23, the department has already had 185 calls about homelessness, and 134 calls about evictions. In December alone, there were 51 calls relative to homelessness. Director Carr, also explained numbers given through Southwestern services to the Council.

Council Thanked Director Carr for all the work she does.

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Stone asked if there is any audio recordings for the Special Meeting next week to have those available, and to make sure Chief Wilmot is available for the meeting. Assistant Mayor Matteau noted there is a CD that was provided from Claremont PD, which will be given to the City Manager for set up.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 7:40 p.m., a motion was made by Assistant and seconded by Councilor Limoges to adjourn.

Voice vote:

Batchelder - yes

Stone - yes

Matteau - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council